

ASCII MASTER FLOW – PANEL 1/12: Federal constitutional map and institutional boundary

UNION -> Article 76 Attorney General for India

STATE -> Article 165 Advocate General for each State

ROLE -> legal advice + assigned legal duties + government representation

NOT -> judge, minister, legislature member, prosecutor-general or final interpreter

CORE: constitutional status defines the office; courts decide law and government decides policy.

MUST REMEMBER: Keep the constitutional Attorney General and Advocate General separate from the executive offices of Solicitor General and Additional Solicitors General.

ASCII MASTER FLOW – PANEL 2/12: Article 76 Attorney General clause spine

- 76(1) -> President appoints a person qualified as Supreme Court Judge
- 76(2) -> advice, assigned legal duties and functions conferred by Constitution/law
- 76(3) -> right of audience in all courts in India while performing duties
- 76(4) -> President pleasure + remuneration determined by President

LIMIT: opinion is advisory; audience is not automatic assignment in every case.

ASCII MASTER FLOW – PANEL 3/12: Article 165 Advocate General clause spine

165(1) -> Governor appoints a person qualified as High Court Judge

165(2) -> State-government advice, assigned duties and legal functions

165(3) -> Governor pleasure + remuneration determined by Governor

ASYMMETRY: Article 165 has no express equivalent of Article 76(3) all-India audience.

Applicable professional and State law controls courtroom practice.

ASCII MASTER FLOW – PANEL 4/12: Qualifications appointment tenure and remuneration

AGI -> citizen + Article 124(3) alternative route; President appoints

ADVOCATE GENERAL -> citizen + Article 217(2) route; Governor appoints

BOTH -> no fixed constitutional term; office during constitutional head pleasure

UNION RULE 3 -> administrative term subject always to Article 76(4) pleasure

TRAP: judicial qualification or retirement age does not become law-officer tenure.

CURRENT OFFICEHOLDER: 5 SEPTEMBER 2026

R. Venkataramani: reappointed for two years from 1 October 2025.

This appointment term does not replace Article 76 pleasure tenure.

ASCII MASTER FLOW – PANEL 5/12: Advice representation and audience distinctions

ADVICE -> legal matter referred or assigned through government route

REPRESENTATION -> specific brief in court or constitutional reference

AUDIENCE -> entitlement to be heard; AGI has express Article 76(3) right

PRACTICE -> professional capacity under governing law

FOUR QUESTIONS: qualified? audience? assigned? conflict-free?

Opinion neither binds government nor court.

ASCII MASTER FLOW – PANEL 6/12: Legislative participation privilege and no vote

ARTICLE 88 -> AGI may speak and take part in both Houses, joint sitting and named committee

ARTICLE 177 -> Advocate General may participate in State House(s) and named committee

ARTICLES 105(4) / 194(4) -> proceeding-linked privilege extension

COMMON LIMIT -> no vote by office; no elected membership or ministerial responsibility

TRAP: permission to participate is not a legislative seat.

CLOSE DISTINCTION: Pleasure tenure, legislative participation without vote, audience rights
and professional-practice restrictions must be stated office by office.

ASCII MASTER FLOW – PANEL 7/12: Rule 8 private practice conflicts and permissions

PRIVATE PRACTICE -> possible, but not unrestricted

DO NOT -> advise or appear against Government / covered public entities

DO NOT -> act where officer advised or is likely to advise government

PERMISSION -> criminal defence and specified company/corporate positions

PROCESS -> conflict check -> disclosure -> recusal/screen -> authorised brief

Union rules cannot be silently imposed on every State Advocate General.

ASCII MASTER FLOW – PANEL 8/12: AGI Solicitor General prosecutor and Law Minister

AGI -> constitutional office under Article 76

SG / ASG -> executive law officers governed by Union rules; not constitutional offices

ADVOCATE GENERAL -> constitutional State office under Article 165

PUBLIC PROSECUTOR -> criminal-procedure office

LAW MINISTER -> political executive

CAG -> independent constitutional auditor

EXAM RULE: classify by creating source before comparing prestige or function.

ASCII MASTER FLOW – PANEL 9/12: Attorney General and Advocate General comparison

DIMENSION	ATTORNEY GENERAL	ADVOCATE GENERAL
Source	Article 76	Article 165
Appointer	President	Governor
Qualification	Supreme Court Judge route	High Court Judge route
Advice	Government of India	State Government
Audience text	all courts in India	no matching express clause
Legislature	Article 88	Article 177
Vote	none by office	none by office
Pleasure	President	Governor

ASCII MASTER FLOW – PANEL 10/12: Government client court duty and confidentiality

GOVERNMENT CLIENT -> expects loyal, competent and confidential advice

COURT DUTY -> candour; no misleading submission or suppressed binding authority

PROFESSIONAL PRIVILEGE -> protects qualifying communications subject to law and exceptions

CONFLICT CONTROL -> identify prior/current interests -> disclose -> recuse or obtain permission

BALANCE: loyalty to government operates within law and professional responsibility.

ASCII MASTER FLOW – PANEL 11/12: Independence, conventions and fair State panel selection

STRUCTURAL TENSION -> trusted counsel + pleasure tenure + assignment control

COUNTERWEIGHT -> qualification + court duty + conflict rules + reasoned advice

STATE OF PUNJAB V. BRIJESHWAR SINGH CHAHAL (2016) -> State panel selection must be fair and objective

LIMIT -> judgment did not replace Governor appointment of Advocate General under Article 165

REFORM: transparent criteria, conflict register, reasoned recusals and reviewable procedures.

ASCII MASTER FLOW – PANEL 12/12: Current controls PYQs traps and answer synthesis

CONTROL DATE -> 5 September 2026; no volatile officeholder frozen

PYQ 2019 -> AGI as chief legal adviser

PYQ 2025 -> responsibilities, rights and limitations

PRELIMS 2022 -> AGI versus Solicitor General constitutional position

FIREWALL: pleasure != impeachment | audience != assigned brief | speak != vote
| privilege != blanket immunity | private practice != conflict-free practice

MAINS: source -> function/right -> limits -> dual-role tension -> qualified reform.

LEGAL/SOURCE LIMIT: The 2025 Gazette reappointed R. Venkataramani as Attorney General for two years from 1 October 2025; the 2026 rules amendment concerns fees.